

Scottish Constitutionalism in Aotearoa New Zealand: A Tale of Two Treaties

Valerie Wallace

School of History, University of St Andrews, St Andrews, UK

ABSTRACT

Following a comparative overview of the histories of the Treaty of Waitangi (1840) and the Anglo-Scottish Union (1707) in the law and constitution of New Zealand and the United Kingdom respectively, this paper explores the role of a Scot, James Busby (1802–1871), in the framing of the Treaty of Waitangi. Drawing on recent scholarship on the meaning of the neglected English text of the Treaty of Waitangi, the paper then considers how Busby's understanding of the Anglo-Scottish Union informed his interpretation of the Treaty of Waitangi. The paper suggests that Scottish interpretations of the Union's fundamental status in the constitution of Britain influenced some historical interpretations of the Treaty of Waitangi's foundational place in the law and constitution of New Zealand. The paper ends by arguing for the importance of appreciating the plurality of the metropolitan British state when unearthing New Zealand's constitutional history.

KEYWORDS

Treaty of Waitangi; Treaty of Union; James Busby; New Zealand; constitutionalism; J.G.A. Pocock

In his 2005 collection, *The Discovery of Islands*, the New Zealand scholar J.G.A. Pocock (1924–2023) brought together two of his intellectual preoccupations: an appreciation of four-nations British history – central to which were its various consolidating unions – and the history of te Tiriti o Waitangi/the Treaty of Waitangi (1840) in what Pocock termed Aotearoa New Zealand's divided culture.¹ By way of a tribute to Pocock, this paper does something similar. Following a comparative analysis of the Anglo-Scottish Union of 1707 and the Treaty of Waitangi in the law and constitution of the United Kingdom and New Zealand respectively, it explores the role of a Scot, James Busby (1802–1871), in the Treaty of Waitangi's framing. Drawing on recent scholarship on the meaning of the neglected English text of the Treaty of Waitangi, the paper then considers how Busby's understanding of the Anglo-Scottish Union informed his interpretation of the Treaty of Waitangi's meaning. The paper suggests that Scottish interpretations of the Union's fundamental status in the constitution of Britain influenced some historical interpretations of the Treaty of Waitangi's foundational role in the law and constitution of New Zealand. The paper ends by arguing for the importance of appreciating the plurality of the metropolitan British state when unearthing New Zealand's constitutional history, which is, it transpires, less divided than we might think.²

Though drafted almost a hundred and fifty years apart and for different reasons, there are similarities between te Tiriti o Waitangi/ the Treaty of Waitangi and the Anglo-Scottish Union, not least how they were framed and how they have been subsequently interpreted. Yet the two Treaties have

CONTACT Valerie Wallace  vw26@st-andrews.ac.uk  University of St Andrews, St Katharine's Lodge, The Scores, St Andrews, KY16 9BA, UK

© 2025 The Author(s). Published by Informa UK Limited, trading as Taylor & Francis Group
This is an Open Access article distributed under the terms of the Creative Commons Attribution-NonCommercial-NoDerivatives License (<http://creativecommons.org/licenses/by-nc-nd/4.0/>), which permits non-commercial re-use, distribution, and reproduction in any medium, provided the original work is properly cited, and is not altered, transformed, or built upon in any way. The terms on which this article has been published allow the posting of the Accepted Manuscript in a repository by the author(s) or with their consent.

seldom been studied side by side. Both are now regarded by many as foundational documents in their respective nation-states though the place of both Treaties in the constitutions of these states remains very much contested.

1. Te Tiriti o Waitangi/ The Treaty of Waitangi (1840)

Te Tiriti o Waitangi/ The Treaty of Waitangi between the British Crown and over five hundred Māori chiefs was first signed on 6 February 1840 at Waitangi in what is now known in English as the North Island of New Zealand. It was one of the ways by which Britain formally colonised the country. The English language version was drafted first before the Māori language version, probably in the days leading up to 6 February, by a group of people. This group included Captain William Hobson, who would become the lieutenant-governor and then governor of New Zealand, and who likely dictated the first draft to his secretary, James Freeman. Hobson was inspired by his instructions from the Colonial Office – and thus James Stephen, the Undersecretary of State for the Colonies, has been described as the principal architect of the Treaty – but the Treaty's wording was left to Hobson to frame. After falling ill Hobson left the composition of the second draft to the British Resident in New Zealand, James Busby, who made some significant changes, including adding what became article two. Hobson then made some changes to Busby's draft and a copy of this English language Treaty was next given to the missionaries Henry Williams and Edward Williams (Henry's son) to translate into te reo Māori (the Māori language), though it remains unclear whether the Williamses worked from a complete draft or from fragments. The complete English language copy has been lost and was for a long time regarded as 'unknowable'. After lengthy discussion at Waitangi, copies of te Tiriti/the Treaty were taken round the country and signed by additional chiefs. Most chiefs signed the Māori language version. Only thirty-nine chiefs signed the version in English.³

Te Tiriti/The Treaty has a preamble and three articles. As is well known, there are apparent differences between the Māori and English language versions. In article one of the English version Māori agree to cede sovereignty to the British Crown while in the Māori version they cede *kāwanatanga*, a limited form of governance, principally over British subjects and as protection against foreign threats.⁴ In article two of the English version Māori retain possession of their lands, estates, forests, fisheries, and other properties; in the Māori version they retain *te tino rangatiratanga*, meaning independence or full chieftainship; article two also gives the Crown the right of pre-emption, though this monopoly right of land purchase was not adequately expressed in the Māori version. Article three granted Māori all the rights and privileges of British subjects.⁵

In the 1840s the Treaty was widely debated, both by Māori and Pākehā (British settlers). But increasingly the Treaty fell out of view (the Treaty documents themselves disappeared for some years). In the aftermath of the New Zealand wars, when settlement and land acquisition intensified, Chief Justice James Prendergast – in *Wi Parata v Bishop of Wellington* (1877), one of the most famous cases in New Zealand's history – infamously described the Treaty as a 'simple nullity'.⁶ Many accepted Prendergast's view, which had been circulating in the decades before his judgment.⁷ Māori had not possessed sovereignty in 1840; Māori had been mere occupiers not proprietors of the land, whose rights were not legally enforceable, and who had no interest at all in unoccupied land; and sovereignty was indivisible – one law, English law, applied to Māori and Pākehā, and the New Zealand Parliament was supreme.⁸ By the time of Prendergast's judgment, control over native affairs had been wrested from the governor and land policy was the preserve of responsible ministers who passed legislation in the New Zealand Parliament confiscating Māori land.⁹

2. The Treaty of Union (1707)

The Treaty of Union between Scotland and England was negotiated almost a century and a half earlier in 1706 and in very different circumstances. But there are some noteworthy parallels with the

Treaty of Waitangi. Like te Tiriti/the Treaty, the Union of 1707 constitutes several documents: a treaty with its articles, the acts of the English and Scottish Parliaments ratifying the articles, as well as the accompanying legislation protecting the established Churches in England and Scotland. The Union Treaty was longer than te Tiriti/the Treaty – it had twenty-five articles rather than three – but like the English language version of the Treaty of Waitangi,¹⁰ the Union Treaty was concerned with the location of sovereignty, with equality of rights, and with the protection in perpetuity of certain customs of the treating partners: in Scotland's case, its legal system and its Church. While the third article of the Treaty of Waitangi granted Māori all the rights and privileges of British subjects, the fourth article of the Union Treaty granted 'communication of all other Rights, Privileges, and Advantages, which do or may belong to the Subjects of either Kingdom; except where it is otherwise expressly agreed in these Articles'.¹¹ Both Treaties were arguably international treaties between two independent sovereign powers. And both involved the Crown. In the case of the Union, Queen Anne (through her commissioners) represented both parties, acting as Queen of Scotland and as Queen of England. At Waitangi Queen Victoria represented the United Kingdom of Great Britain and Ireland while the United Tribes, who had confederated when He Whakaputanga/the Declaration of Independence was drafted in 1835, and independent chiefs, who had not joined this confederation, represented their respective iwi (tribes). Both Treaties were drawn up owing to perceived threats from France and both occasioned country-wide debate.¹²

Like the Treaty of Waitangi, the Union Treaty also fell out of view in the late nineteenth century, being regarded in Britain as something approaching a nullity in the era of Diceyan orthodoxy. A.V. Dicey (1835–1922) considered the Union to be no more important than any humble act of Parliament (though he did later argue that it would be politically inexpedient and a danger to the constitution for Westminster to alter the terms of Union), a view that was accepted in Scottish legal circles. The Westminster Parliament was supreme and its authority was not limited by the Treaty.¹³ As Stephen Tierney has recently put it, 'the orthodox account of the Union of Scotland and England is one of an incorporating marriage similar in reality to a conquest of Scotland by the English constitutional system.' As the English Parliament essentially survived the Union intact, it 'brought with it into the new state ... the emerging sense of its own supremacy'.¹⁴ The same could be said of New Zealand. Indeed, in 2013 during the run-up to the Scottish independence referendum of 2014, the preferred view – the rUK continuator theory – presented to Westminster in expert opinion drafted by Professors James Crawford and Alan Boyle, was that if Scotland seceded, there would be no union to dissolve, only independence to grant. For in 1707, of the two treating parties, only Scotland was extinguished while England continued under the new name of Great Britain (and later the UK). In support of this view the Treaty of Waitangi was held up for comparison: at Waitangi an independent state had ceded its sovereignty and the 'resulting constitutional system could still be identified with only one of the two parties, England, at the expense of the other'.¹⁵

3. Re-appearance of Treaties

It was only in the second half of the twentieth century that both Treaties came back into view. In New Zealand, Māori protest in the 1970s brought the Treaty back to the attention of Pākehā; as did a landmark article published by Ruth Ross in 1972 in *The New Zealand Journal of History*. Ross claimed that there had been discrepancies between the Māori and English treaties, that the framers had deceived Māori into signing, and that the Māori language version was the version to focus on as that was the version to which most Māori had agreed.¹⁶ Ross's article and the establishment of the Waitangi Tribunal in 1975, which in 1985 was given powers to investigate historic breaches of the Treaty stretching back to 1840, initiated a wealth of Treaty-related scholarship.¹⁷

The Tribunal was charged by the Treaty of Waitangi Act (1975) to assess claims relating to the practical application of the principles of the Treaty. The Tribunal then elaborated on the content of these principles. These 'malleable principles' of partnership, protection, and participation, which, as

the Hon. Justice Sir Joe Williams has said, ‘hovered above the text, invisible to most readers’,¹⁸ were then increasingly recognised in legislation – the State Owned Enterprises Act (1986), for example, which obliged the Crown when corporatizing state assets to comply with Treaty principles.¹⁹ Thus, some statutory acknowledgment was given to the Treaty, allowing the courts to interpret the Treaty in a ‘generous way’.²⁰

The judgment of Sir Robin Cooke (later Baron Cooke of Thorndon) in the landmark 1987 case *New Zealand Maori Council v Attorney-General* articulated Treaty principles as expressing a partnership between Māori and the Crown: both parties were to act ‘in good faith, fairly, reasonably and honourably towards the other’.²¹ Pocock wrote in 2001 that New Zealand had ‘reached the brink of proclaiming its own sovereignty conditional upon a treaty which now approaches the stature of a fundamental law, contract of government, and ancient constitution’.²² Nevertheless, the Treaty remained ‘unfulfilled’,²³ its place in the constitution unstable and contested.²⁴ According to Sir Geoffrey Palmer, minister of justice between 1984 and 1989 and prime minister from 1989 to 1990, the Treaty is ‘half in and half out’ of New Zealand’s law.²⁵ Palmer, along with the lawyer Andrew Butler, has made repeated pleas for a written constitution in New Zealand, most substantively in books published in 2016 and 2018.²⁶

F.M. ‘Jock’ Brookfield, former Professor of Law at the University of Auckland, also favoured a written constitution to entrench Māori rights. Writing in 1995, Brookfield maintained that the orthodox view of the Treaty of Waitangi among Pākehā scholars in New Zealand remained similar to that then held – and still held – by English constitutional lawyers on the Union: that parliamentary supremacy prevailed, even over a seemingly constitutive treaty. Unlike the Union Treaty, which Brookfield considered to be fundamental law and which he believed limited Westminster’s power, the Treaty of Waitangi had never been given effect by statute.²⁷ Brookfield’s view of the Union was influenced by a new era of Scottish constitutional interpretation initiated in 1953 by Lord Cooper’s famous dictum in *MacCormick v Lord Advocate*. In this case on the constitutionality of the historically inaccurate title ‘Queen Elizabeth II of Great Britain’, which the claimants maintained infringed the Union Treaty, Cooper rejected Diceyan orthodoxy arguing that the Union limited Westminster’s supremacy. To Cooper ‘the principle of the unlimited sovereignty of Parliament is a distinctively English principle which has no counterpart in Scottish constitutional law. It derives its origins from Coke and Blackstone, and was widely popularised during the nineteenth century by Bagehot and Dicey’.²⁸ Neil MacCormick (1941–2009), the legal philosopher and son of John MacCormick (1904–61), one of the claimants in the 1953 case, developed this argument in the 1970s just as the Treaty of Waitangi was being reassessed in New Zealand. The Union Agreement, in MacCormick’s eyes, should be regarded as fundamental law; Westminster has no power to abolish the Scottish legal system or to disestablish the Church of Scotland; that is, to override guarantees specified in the Articles of Union and accompanying act securing the Church.²⁹ Beginning with the Claim of Right for Scotland in 1988, this argument underpinned justifications for a devolved Scottish Parliament (which eventually came into being in 1999). Today there are calls for further constitutional reframing to take account of the Union’s place in the British constitution,³⁰ while others, of course, favour constitutional overhaul, including complete dissolution of the Union and the establishment of an independent Scottish state.

In New Zealand, revolutionary ‘constitutional transformation’ also has its fair share of support. Moana Jackson (1945–2022), the late constitutional lawyer, observed that most Māori do not want the Treaty entrenched in a written constitution.³¹ The propagation of Treaty principles, according to Ani Mikaere, is an ‘exercise in intellectual dishonesty’ which has ‘enabled the construction of new layers of deceit concerning the nature of the Crown’s relationship with Māori’.³² In 2016, Matike Mai Aotearoa: The Independent Iwi Working Group on Constitutional Transformation proposed six constitutional models that recognised the constitutive power of Māori and the values of Māori constitutionalism. Each of these incorporates both a rangatiratanga sphere (e.g. an iwi/hapū assembly) and a kāwanatanga sphere (Crown-in-Parliament).³³

4. Treaty myth-histories

In both countries, it has been argued, judicial activism over the last half-century has resulted in the propagation of myth-histories. In New Zealand, W.H. Oliver, Andrew Sharp, and recently Bain Attwood have expressed concern at the presentist and counter-factual histories produced in Waitangi Tribunal reports, in legal scholarship, and by academic historians who seek not to describe how things actually were but to lament what could have been and to describe what should be.³⁴ The notion of Treaty principles of partnership has become the new orthodoxy; despite the criticisms noted above, the contested nature of the Treaty and the variety of interpretations of the documents – historically and currently – are largely ignored.³⁵ The re-imagining of the Treaty has been the by-product of the dominance of Ruth Ross's interpretation of what happened at Waitangi – that the texts do not reconcile and that Māori were duped, possibly deliberately, by inaccurate translation into ceding their sovereignty. Another by-product of the dominance of this interpretation has been, rightly, the overwhelming focus on what Māori thought they had agreed to in the Māori text. The Ross argument, which took on a life of its own, discouraged examination of the English text of the Treaty and the meaning behind it. Understandings of sovereignty have been inadequately contextualised.³⁶ As Carwyn Jones has written, the Orakei Tribunal in 1987 concluded that the Māori text failed to convey the 'cession of the English concept of sovereignty' expressed in the English language text.³⁷ What was the English concept of sovereignty in 1840? Did it differ to the concept of sovereignty which predominated in the age of Prendergast and Dicey? And how 'English' was it?

Meanwhile in Scotland Lord Cooper's dictum stimulated a myth-history of a distinctive tradition of Scottish constitutionalism at odds with England's doctrine of parliamentary supremacy. In Scotland, as opposed to England, the constitution, so the narrative runs, was founded on the will of the community and monarchy was limited. In reality, it has been argued, there was no consensus in Scotland in 1707 on how sovereignty should be understood. Sovereignty as a concept 'has a history of its own' and needs to be understood in context. In 1707 the debate over Scottish sovereignty concerned feudal law and the status of the Scottish monarchy as an independent imperial crown. And while the domestic location of law-making authority and relations with external foreign powers were important considerations, the protection of the Crown rights of Jesus, and the relationship between the ecclesiastical and temporal spheres in Scottish Presbyterian two-kingdoms ecclesiology were equally so.³⁸ Yet, it seems there is some evidence of a distinctive tradition in Scotland of imposing limitations on monarchical rule.³⁹ And while the Union's status inspired little debate through the eighteenth century, there were some commentators who contended that the Union Articles constrained Westminster: a view also expressed in the domain of church politics during the Ten Years' Conflict of the 1830s and the Disruption of the Kirk in 1843, a crisis that brought two visions of the constitution into collision. Free Churchers, who seceded from the Church of Scotland, indebted to the long-held Scottish Presbyterian belief in the two-kingdoms doctrine, were keen to protect Christ's sovereignty in the ecclesiastical sphere from the unscriptural invasion of the civil magistrate. In other words, they resented the interference of the civil courts in the affairs of the Kirk. The Union, which had protected the Church of Scotland and limited Parliament's power, was described in this era as having brought about a federal constitution.⁴⁰ As Pocock said, 1707 was 'a federative union of church-states'.⁴¹

As with all myth-histories, an element of truth underpins the narrative of a distinctive constitutional tradition in Scotland, as it does the narrative of Treaty partnership in Aotearoa New Zealand. In 2022 Ned Fletcher published a magisterial 723-page book on the neglected English text of the Treaty of Waitangi, suggesting that there are fewer differences between the English and Māori texts than has been previously believed. The English language text guaranteed that Māori law and internal governance of iwi would be protected. There was no deliberate deception of Māori. The concept of sovereignty expressed in the English text was not that expressed in 1877 by Prendergast. Nor was it that articulated by the Waitangi Tribunal in 2014, whose definition of British sovereignty

relied on Blackstone's *Commentaries* from 1765 and emphasised the Westminster Parliament's 'supreme, irresistible, absolute [and] uncontrolled authority'.⁴² According to Fletcher, building on the pioneering work of Paul McHugh,⁴³ the framers were indebted to precedents elsewhere in the empire where sovereignty had been personal and jurisdictional, not territorial. They believed that a Treaty was necessary as Māori sovereignty had been acknowledged (e.g. by recognition of He Whakaputanga, the 1835 Declaration of Independence), that pre-emption was treated for, that Māori were full proprietors, and that Māori title could be enforced in court.

Individual chiefs and the chiefs of the Confederation of the United Tribes ceded their sovereignty (kāwanatanga) but they still retained their chieftainship (their rangatiratanga) over their respective tribes, just as the northern tribes had done in 1835 when they had joined together to form a confederation. Māori custom (as long as it did not conflict with humane laws) was also protected. Notably, early legislation, such as the Native Exemption Ordinance (1844), and the constitutional designs for New Zealand in 1845–6 and 1851–2, including section 71 of the eventual Constitution Act (1852), recognised the existence of separate Māori jurisdiction.⁴⁴ The views of Prendergast ultimately prevailed as arguments concerning the applicability of American case law – that sovereignty in New Zealand was founded on discovery by which the Crown had inherent pre-emption rights, that the Crown had the right to 'waste lands', and that Māori were mere occupants, not owners – took hold in New Zealand, but these views, though they were in circulation, were not universally accepted in 1840.

Fletcher has been criticised for placing too much emphasis on the Treaty as a canonical text and for downplaying the contestability of the document and the contradictory statements of the Colonial Office agents who helped to frame it. The Treaty, as Mark Hickford has pointed out, was 'inherently contestable', and provoked 'diverse responses'.⁴⁵ In his 1992 article in *The New Zealand Journal of History*, Pocock observed that some contemporaries, on the basis that Māori did not use plough technology and were obliged to wander in search of fertile land for cultivation, questioned how far Māori proprietary rights and their capacity as 'sovereign exercisers of imperium' extended.⁴⁶ Fletcher claims that James Stephen, considered by Fletcher to have been the principal architect of the Treaty, took a different view. Stephen too was influenced by Scottish stadialism but he maintained that Māori were not 'wandering tribes' and had 'a settled form of Government'. Yet, as Hickford has pointed out, Stephen was comfortable with the idea of further colonisation in New Zealand. Stephen contemplated, in Hickford's view, 'the concept of native title as a diminishing category' and believed that only through investigation on the ground could the substance of Māori customary rights be properly determined.⁴⁷

James Busby, the British Resident, another of the Treaty's framers, was also inconsistent as well as self-serving. In the 1860s an embittered and older Busby argued that before the Treaty had been agreed, New Zealand had been a 'country without a law' and that Māori property rights were not legally recognisable.⁴⁸ During his early years as British Resident, however, Busby articulated, according to Fletcher, a consistent and principled position. As British Resident Busby lobbied for a protectorate to be established in New Zealand and in 1835 he drafted the Declaration of Independence, described by Busby in a letter to his brother in December that year as 'the Magna Charta of New Zealand Independence'.⁴⁹ Busby was, in Fletcher's view, probably responsible for the second draft of the Treaty into which he added what became article two on the protection of property and chieftainship. This guarantee was then reflected in Hobson's preamble – drafted last – which expressed the Treaty's principal purpose as the protection of Māori in their 'just Rights and Property'. In a petition to the House of Commons in 1845, Busby described the Treaty as having been made 'in good faith and as measures of protection and advantage to the New Zealanders'. In the same petition Busby expressed his concern at the intensification of systematic colonisation of New Zealand in the years since the Treaty had been agreed. Had he foreseen the extent of this planned emigration, he claimed, he would never 'have thought of recommending [Māori] to agree to the treaty', the original intention of which was 'to enable the Queen to preserve peace

amongst the New Zealanders and her own subjects'.⁵⁰ As one of the original framers of the Treaty, Busby, Fletcher argues, gave expression in the document to the idea of pluralistic governance.⁵¹

Busby, as Fletcher and Dame Sian Elias have discovered, later drew an explicit parallel between the Treaty of Waitangi and the Treaty of Union.⁵² He underlined the guarantees that both Treaties made for legal pluralism and co-governance, and suggested that both agreements put limitations on Parliament. Ged Martin has suggested that Busby, as the child of an English father and Scottish mother growing up in Edinburgh, whose New Town reflected the city's prosperity within the British union-state, would have regarded the 1707 agreement positively. Busby would have 'felt no qualms in offering a similar settlement' to Māori.⁵³ I take Martin's suggestion further and submit here that Busby's understanding of what the Treaty of Waitangi guaranteed – at least as he articulated it in the 1850s, and given the support he found from some in the Scottish diaspora community – may have been shaped by Scottish understandings of sovereignty and the place of the Union Agreement in the British constitution.

5. James Busby: the (North) British Resident

Besides Ged Martin's brief study, scholarship has overlooked Busby's Scottish background and the Scottish contexts in which he lived and thought.⁵⁴ Born in Edinburgh in 1802, to an engineer father from Northumberland and a Scottish mother, Busby studied medicine briefly at the University of Edinburgh in 1816–17. In 1824 he migrated with his family to New South Wales. His correspondence reveals Busby to have been a member of Scottish networks and well connected to Scotland itself.⁵⁵ For example, in Sydney he kept abreast of Scottish news by reading Edinburgh newspapers procured from ships arriving from Scotland. He also purchased a copy of *Elements of Moral Philosophy* (possibly the third volume, which appeared in 1827) by Dugald Stewart, an influential 'transmitter' of Scottish ideas of stadialism,⁵⁶ and which Busby read when he could 'steal an hour'.⁵⁷ On his migration to New Zealand as British Resident, a position he held between 1833 and 1840, Busby remained connected to the trans-Tasman Scottish diaspora.⁵⁸

Busby's relationships with his fellow Scots were not always harmonious, however. Between 1834 and 1839 Busby made several land purchases from Māori at Waitangi, Whangarei Harbour, Ngunguru, and Waipu. When Highland Scots were set to colonise Waipu – which would become the most famous Scottish settlement in New Zealand outside Dunedin – Busby warned them against trespassing on what he considered to be his property.⁵⁹ Busby's land purchases had come under investigation following the land claims legislation by the New South Wales Council in 1840 (when New Zealand was still attached to New South Wales) and the New Zealand Legislative Council in 1841, which invalidated land purchases from Māori made by Europeans before the Treaty's signing. After investigations by commissioners, if deemed valid, a Crown grant for not more than 2560 acres was issued confirming the purchase. The remaining land in a claim exceeding 2560 acres was retained by the Crown. By the 1841 ordinance all unappropriated lands were declared to be Crown lands.

Governor Gipps of New South Wales justified his legislation on the grounds that Britain's sovereignty in New Zealand rested on the doctrine of discovery, not on the Treaty. Discovery gave the Crown the right of pre-emption and assumed the applicability in New Zealand of the English system of land tenures by which title ultimately derived from the Crown. Only Crown-granted title was legally enforceable. Gipps's arguments were supported by the American decision in *Johnson v M'Intosh* (1823) which asserted that first nations had no property in land, only a right of occupancy. In July 1840 Busby challenged Gipps in a debate in the Sydney Legislative Council claiming that the legislation was inconsistent with the Treaty. He repeated these arguments in his 1845 petition to the House of Commons. As his claims to the lands at Whangarei, which he had purchased from Te Parawhau, the local iwi, in December 1839, still had not been resolved almost twenty years later, he continued his challenge in *Busby v White* (1859). In this action for ejectment brought by Busby in the Supreme Court (High Court in this period),

Busby articulated a similar argument to the one he had previously levelled against Gipps. It was during this case that Busby expressed an understanding that the Treaty of Waitangi resembled the Treaty of Union. This comparison was a central plank of his defence of the validity of Māori title, the legal status of the Treaty, and the plurality of laws and governance which it guaranteed.⁶⁰

6. The two Treaties in *Busby v White* (1859)

Busby hoped to recover an allotment of land which he claimed as his but which had been purchased from the Crown by one Titus White. As Fletcher and Elias have explained, Busby aimed to have points of law in the case appealed to the Judicial Committee of the Privy Council in the hope that the Privy Council's ruling would invalidate the land claims legislation as inconsistent with the Treaty. In the event, Busby was frustrated, as the judge ultimately dismissed the case on the grounds that it was collusive, Busby having paid for White to purchase a Crown title to his land. Busby was represented by Singleton Rochfort, a lawyer originally from Victoria in Australia, who, after a period in Auckland, where he married the daughter of Scotsman,⁶¹ moved back to Melbourne where he worked on Busby's case. In Melbourne Rochfort had access to texts not available in New Zealand, but it is likely that Busby was involved in constructing the argument. Busby represented himself in court and edited the printed version of the argument, issued by the office of the *Southern Cross* newspaper.⁶²

Busby and Rochfort maintained that Busby had purchased land from Māori legitimately, something the Māori vendors did not dispute. Māori nations had been sovereign before the Treaty's signing and this sovereignty had been recognised by the British Crown.⁶³ The Treaty of 1840 had therefore been an agreement between two independent sovereign powers; these were represented by Victoria, carefully described as 'the Queen of the Britanno-Hibernian nation', and the various chiefs representing their various iwi.⁶⁴ The Treaty of Waitangi was in fact 'a treaty of union between the United Kingdom and the respective states of Maorania or New Zealand, and is to be construed in the same manner as the treaty of union between England and Scotland, or as any other treaty between civilized nations.'⁶⁵

Before and at the time of the signing of the Treaty of Waitangi, Māori title was 'as well-founded and indisputable as are those of European states to their respective dominions'. English law had from 'time immemorial' permitted subjects to purchase land in foreign territories.⁶⁶ Busby and Rochfort then recounted the many examples furnished by the history of feudal law of subjects purchasing lands in foreign territories, including that of Scottish kings who had paid homage to English monarchs on the basis of lands they had acquired in England.⁶⁷ Busby had purchased his land from Te Parawhau in 1839 according to Māori custom and had become a member of the Parawhau nation. By agreeing to the Treaty of Waitangi, the chiefs had ceded their sovereignty but had had the preservation of all their property and the laws constituting this property guaranteed. Māori had also been guaranteed their rights and privileges of British subjects, which further entitled them to the protection of their property:

the maories stand in the same relation to the United Kingdom, that the Scots did to Great Britain, after the union of their country with England. Had a judge, after this union, declared that no Englishman could purchase lands of the natives of Scotland, save for the Crown, what would have been thought of him? what would have been said, if such judge had cited the case of the North American Indians in support of the doctrine? The cases of Scotland and New Zealand are identical ... The force of one treaty was equal to that of the other, and for the same reasons: - the contracting parties had power to enter the same.⁶⁸

Busby and Rochfort maintained that the British Crown did not have the right to nullify a purchase made by a foreigner in the land of a sovereign nation before sovereignty had been ceded nor was it now able to seize Māori 'surplus' land.⁶⁹

Thus, in Busby's view Māori law (though he wanted British justice to apply) was permissible under the Treaty of Waitangi just as Scotland's independent laws and property had endured

after 1707. The Treaty of Union ‘stipulated ... that [the laws and institutions of England and Scotland] should continue in force and operation, in the respective countries ... These laws and institutions, as well as those subsequently established, had their force by virtue of the treaty’. The British-Irish union of 1801 had also retained these laws and institutions. Similarly, Māori had had their customs protected by the Treaty of Waitangi. The Treaty had explicitly protected Māori lands in article two, drafted by Busby, and the laws that upheld Māori property rights remained intact as well. These laws ‘remained in full vigour, notwithstanding the cession of their national sovereignty.’⁷⁰ Articles one, two, and three were not inconsistent in Busby’s view – Māori could have property rights protected by rangatiratanga under British sovereignty and still have rights as British subjects, just as Scots retained their private law in Scottish jurisdiction and had rights under the British Crown.

Busby and Rochfort’s comparison of the two Treaties cannot be taken as evidence in support of the rUK continuator theory asserted by Crawford and Boyle, however. Though Busby and Rochfort argued that the position of Scotland and Māori was identical, they also maintained that Waitangi and the Union were different types of agreement. ‘By the treaty of union of 1707, between England and Scotland, both Nations’ – not just Scotland, as Crawford and Boyle assert – ‘dissolved themselves, and their late members united and constituted themselves into a new civil society called “The British Nation”’. At Waitangi, by contrast, ‘By virtue of the treaty, all who were Parawhaua, according to the laws and customs of that nation, were, on that day, adopted into, and became members of, the Britanno-Hibernian nation; the Parawhau territory then became part and parcel of the United Kingdom.’⁷¹ To illustrate the point, Busby and Rochfort asked the court to imagine what would have occurred had such a Treaty as Waitangi been agreed to in Scotland in 1707: ‘those who had been theretofore called Scotchmen would have become members of the English nation, or Englishmen, as happened in the case of the people of Berwick on Tweed, upon the cession of that town by Edward Baliol to the King of England; Scotland would have become as much a part and parcel of the Kingdom of England, as the county of-Middlesex.’⁷² This reading of what had emphatically *not* happened at 1707 might have been indebted to William Robertson’s *History of Scotland*, first published in 1759, which Busby and Rochfort drew on several times in their argument. Robertson, who engaged in the imperial crowns debate which raged in Scotland before and after 1707, rejected the notion that the union-state was an English empire, describing the Union as an agreement between two independent crowns.⁷³ Busby and Rochfort’s point in making this analogy was that Māori as members of an extended British-Irish realm now had full rights as British subjects to the protection of their property, as well as the right to abide by their own laws reserved to them by the Treaty.

Busby and Rochfort hinted that both Treaties were fundamental documents whose existence and whose precepts the Crown could not ignore. Treaties between nations were ‘sacred and inviolable, according to their intent and meaning,’ as *Campbell v Hall* had shown.⁷⁴ Subordinate legislatures, such as colonial assemblies, had no authority to ‘change the National laws, unless it is thereunto expressly authorized by act of Parliament’.⁷⁵ The land claims ordinance had been beyond the Legislative Council’s scope. The Treaty of Waitangi was ‘a document inscribed in the law of nations, and forming a portion of our municipal code’; thus, the local legislature ‘could not alter or repeal any part of that treaty, because every such act of state is rendered sacred by the common law, and cannot be altered but by the express authority of Parliament.’ Accordingly, the power of New Zealand’s colonial Parliament, which had been created after the Treaty of Waitangi had been agreed, was limited by the Treaty: ‘A power to make laws and ordinances does not comprise that of infracting treaties.’⁷⁶ Westminster, however, seems, in Busby and Rochfort’s eyes, to have retained the power to alter the Treaty terms. Busby and Rochfort’s comments on Westminster are hard to reconcile. Unlike colonial legislatures, they contended, the Westminster Parliament could not limit its powers and had authority even to change the established religion or alter the succession, a view with which some more recent Scottish constitutional theorists would disagree.⁷⁷ Yet Busby and Rochfort also maintained that ‘All our laws and institutions now existing’ derived their vitality from the two Unions of 1707 and 1801.⁷⁸ The Channel Islands and the colonies, they stated

elsewhere in their argument, though not specially named in the 1707 Union or the 1801 British-Irish Union, were bound by them. The British constitution was treaty-derived.⁷⁹

7. Beyond busby

Busby's view on the Treaty of Waitangi found support from some in the Scottish diaspora community in Auckland and Sydney. The *Southern Cross* printed his argument in *Busby v White* in full and issued it as a separate publication. The *Southern Cross* had initially been edited by Samuel McDonald Martin (1805?–1848), a migrant from the Isle of Skye to Sydney and then Auckland who, like Busby, had purchased land from Māori before the Treaty had been signed. Martin joined Busby in protesting against Gipps's land claims ordinance in Sydney in 1840, criticising, like Busby, Gipps's inattention to the Treaty and the Crown's apparent grab of 'surplus land' through its pre-emption right. The campaigning of land claimants like Martin has been written off as self-interested, yet Martin's critique of British imperial policy seems to have been underpinned by a Scottish and Free Church-inflected reading of the British constitution: an interpretation then current owing to the Disruption, a crisis unfolding contemporaneously with the post-Treaty debate in Sydney and Auckland. This interpretation of the constitution emphasised the importance of the Union Agreement as a bulwark against the Crown-in-Parliament's pretensions of Anglican supremacy and it echoed older Scottish assertions of the sovereignty of Christ in the ecclesiastical sphere. Martin accused the British government of assuming a papal-like supremacy in New Zealand. 'Divine and Discovery Right', he wrote, had been fabricated owing to the 'impudent pretensions of ancient priestcraft'.⁸⁰ The Pope of Rome, who had usurped the authority of Christ, had claimed an unscriptural right to govern the globe. He had delegated this right to the Spanish who had then murdered and robbed indigenous Americans. This 'old Romish doctrine', the *Southern Cross* contended, was being revived in New Zealand as a means to deprive settlers and Māori of their lands.⁸¹ The Scottish interpretation of the Union's place in the British constitution was also endorsed by *The Colonist*, a Sydney-based newspaper edited by diaspora Scots, which, during the contest with Gipps, took the same view as Busby of the Treaty of Waitangi. Busby was an avid reader of *The Colonist* when living in New Zealand and it seems likely that he would have been exposed to the paper's view of the Union.⁸²

Increasingly the Prendergast view of the Treaty as a nullity took hold in New Zealand. Yet, even in the second half of the century dissenting views could still be heard. In 1865, after Busby failed to have the legality of his title to land at Whangarei decided by the Judicial Committee of the Privy Council, a hundred and four 'Settlers in the province of Auckland', led by Captain William Rattray, a Scottish member of the Auckland Provincial Council, petitioned the House of Commons on Busby's behalf. The petitioners, many of whom lived at Whangarei, claimed that they had always understood from local Māori that Busby's purchase had been valid.⁸³ In the early 1860s following the outbreak of war in Taranaki, William Martin (1807–1880), the former Chief Justice, maintained that although the Queen's sovereignty extended across the entirety of New Zealand, Māori had by the Treaty retained te tino rangatiratanga in respect of their lands. At this time an embittered Busby publicly disagreed with Martin (and was criticised for his inconsistency), despite Martin's view resembling Busby's earlier position.⁸⁴ Multiple systems of law, Martin pointed out, could exist under the Crown: 'Within Great Britain itself, the Scottish system differs from the English'.⁸⁵ As Fletcher and Alex Frame have observed, in 1870 in his *Kauwaeranga* judgment, F.D. Fenton (c.1824–1898), an English lawyer and Chief Judge of the Native Land Court, also expressed a view of the Treaty which resembled Busby's earlier argument.⁸⁶ In this case the Crown had argued that its sovereignty in New Zealand rested on settlement as well as on the Treaty, claiming that the Māori claim to ownership of the foreshore was a derogation of the prerogative of the Crown. In response, Fenton, who, it should be noted, had assimilationist goals – having earlier produced a code of English laws for the benefit of Māori⁸⁷ – declared the Treaty of Waitangi to be, in the words of Frame, 'part of the bedrock of the New Zealand legal system'.⁸⁸ Interestingly, some years later in 1885 during a period when the New Zealand government sought, controversially,

to alienate more Māori land, Fenton seems to have insisted on the limitations to the New Zealand Parliament's power on issues unpopular with Māori, drawing a parallel with the Treaty of Union's limiting influence on Westminster in matters 'distasteful to the people of Scotland'. Fenton may have been trying to make an impression on the rapacious Glasgow-born John Bryce, minister of native affairs between 1881 and 1884, who was questioning him.⁸⁹

In the same era, again in a debate with Bryce, who objected to the idea of elected Māori committees with the jurisdiction to adjudicate disputes between Māori in Māori districts, William Swanson (1819–1903), an Edinburgh-born politician, continued to maintain that Māori legal autonomy was possible in New Zealand under British sovereignty, pointing to the Union of 1707 and its guarantee of separate Scottish jurisdiction:

It has been dwelt upon as a very good and desirable thing that there should be one law for all the people of the colony—never mind what their feelings are, or what their bringing-up and former habits have been. I dissent altogether from that. The whole legislation of England is the other way. In Scotland the criminal and civil law, the law of inheritance and the marriage laws, are entirely different from those of England, and every Scotchman and most Englishmen know that ... But do the British people quarrel for all that? On the contrary, the laws they wish are left to them ...⁹⁰

8. Conclusion

Until recently it was widely believed that Māori had been dishonourably deceived into ceding their sovereignty in 1840; that Prendergast's view held sway through nineteenth-century Pākehā New Zealand; and that the Treaty was disparaged as a nullity until the late twentieth century when it was reinterpreted and its original principles uncovered.⁹¹ Fletcher has recently maintained that, on the contrary, the framers of the English text of the Treaty in 1840 believed that some Māori autonomy was compatible with British rule. The neglect of the English language version is understandable, considering that the Māori text prevails legally, yet this neglect has resulted in ahistorical and misleading interpretations of the English Treaty's meaning, as it was understood by contemporaries. Understandings of the Treaty of Waitangi changed as the nineteenth century progressed, – as did understandings of the Treaty of Union⁹² – and, as Mark Hickford has shown, they were always varied. James Busby, one of the original framers, whose claims to have been partly responsible for the Treaty are now accepted, when once they were dismissed as overblown, compared the Treaty of Waitangi with the 1707 Union Agreement. The Treaty of Waitangi, as it was conceived by Busby (in his 1859 argument at least) – most likely inspired by the imperial crowns debate in Scotland – was a treaty, like the Treaty of Union, between two independent sovereign powers, and it allowed for an element of pluralistic governance. The Treaty of Waitangi preserved Māori law and rangatiratanga, just as the Union Treaty preserved Scottish institutions. Treaties, Busby and others suggested, placed limitations on parliamentary power; the Treaty of Waitangi certainly limited what the colonial Parliament could do, while the Union had created a new nation-state from which 'all our laws and institutions now existing' derived their vitality. An element of truth underpins the respective and, it turns out, intertwined, myth-histories of Treaty partnership in Aotearoa and of a distinctive constitutional tradition in Scotland.

In *The New Zealand Journal of History* in April 1974, J.G.A. Pocock – prompted by Britain's entry into the EEC – called on New Zealand historians to pay proper attention to Britain's plurality and to the importance of their country's connection with Britain. He wanted them to 're-assess British history as a shared possession'.⁹³ Preoccupied with nation-building and articulating New Zealand exceptionalism, New Zealand historians like Keith Sinclair (1922–1993) tended to ignore Pocock, as Ian McBride has observed.⁹⁴ In the twentieth century, it has been argued, Pākehā New Zealanders forgot their own pasts. It was only in the 2000s that New Zealand historians began properly to examine the plurality of their British inheritance. Tellingly, Sinclair's 1959 *A History of New Zealand* had no index entry for Scots.⁹⁵ In response to Sinclair, Pocock suggested that New Zealand possessed 'two totemic birds: the kiwi, flightless, nocturnal and inhabiting the forest

floor, and the godwit, a migratory species whose flocks traverse the Pacific between New Zealand and Siberia or Alaska.’ Sinclair was the kiwi and Pocock the godwit.

For Pocock the voyage on the waka was as important as the whenua in the telling of New Zealand’s history. The new British history, Pocock wrote, offered to New Zealanders (and others like them) ‘a history in which they have taken part, which may help explain them to themselves, and to which they may lay claim’.⁹⁶ Might attention to the significance of Britain’s plurality in the history of the framing and interpretation of New Zealand’s foundational document have something to offer New Zealanders now? As Dame Sian Elias, former Chief Justice of the New Zealand Supreme Court, has said:

It is worth remembering also that our original form of representative government enabled a form of federation both in the arrangements for provincial government and in the space left for self-government within Māori Districts. These earlier limitations on Parliament and forms of devolution suggest that we should not be too quick to dismiss contemporary calls for similar modern constitutional adaptations as contrary to our history and traditions. They were not unthinkable in the past.⁹⁷

Certainly, as this paper has suggested, they were not unthinkable to some Pākehā Scots whose interpretations of the Treaty of Waitangi’s fundamental status in the law and constitution of New Zealand seem to have been shaped by Scottish interpretations of the Union’s fundamental status in the constitution of Britain. Maybe it is time for the kiwi to look up from the fernroots – from the whenua – to ‘what was happening in the upper winds of the world’, to the flight of the godwit, and to the waka’s voyage.⁹⁸

Notes

1. J.G.A. Pocock, *The Discovery of Islands* (Cambridge: Cambridge University Press, 2005). See also, J.G.A. Pocock, ‘The Uniqueness of Aotearoa’, *Proceedings of the American Philosophical Society* 145, no. 4 (2001): 482–87: <http://www.jstor.org/stable/1558187>.
2. The New Zealand Centre for Public Law hosted a conference on ‘Unearthing New Zealand’s Constitutional Traditions’ in August 2013. Contributions were later published in the *New Zealand Journal of Public and International Law*, some of which are cited below. As far as I can tell, Scotland’s traditions were not a focus of the event or of subsequent scholarship.
3. Summarised from Ned Fletcher, *The English Text of the Treaty of Waitangi* (Wellington: Bridget Williams Books, 2022), 257–326. See also Phil Parkinson, “‘Preserved in the Archives of the Colony’: The English Drafts of the Treaty of Waitangi”, *Révue Juridique Polynésienne/New Zealand Association for Comparative Law*, 11 (2004): 1–110.
4. Matthew Palmer, ‘The Treaty in New Zealand’s Law and Constitution’: <https://natlib.govt.nz/blog/posts/the-treaty-in-new-zealand-s-law-and-constitution>.
5. For the text of te Tiriti/the Treaty, see <https://www.tepapa.govt.nz/discover-collections/read-watch-play/maori/treaty-waitangi/treaty-close/full-text-te-tiriti-o>.
6. *Wi Parata v Bishop of Wellington* (1877) 3 NZ Jur (NS) 72 (SC). See also David V Williams, *A Simple Nullity?: The Wi Parata Case in New Zealand Law and History* (Auckland: Auckland University Press, 2011).
7. On which see Mark Hickford, *Lords of the Land: Indigenous Property Rights and the Jurisprudence of Empire* (Oxford: Oxford University Press, 2011).
8. Fletcher, *English Text*, 508.
9. David V Williams, ‘Constitutional Traditions in Māori Interactions with the Crown’, *New Zealand Journal of Public and International Law* 12, no.1 (2014): 231–60. On confiscation see Richard Boast and Richard S. Hill (eds), *Raupatu: The Confiscation of Maori Land* (Wellington: Victoria University Press, 2009).
10. The Māori version of te Tiriti did not mention sovereignty.
11. For the Articles of Union see Gordon Donaldson (ed.), *Scottish Historical Documents* (Neil Wilson: Glasgow, 1997), 268–75.
12. On the Union see Christopher A. Whatley and Derek J. Patrick, *The Scots and the Union* (Edinburgh: Edinburgh University Press, 2006); Karin Bowie, *Scottish Public Opinion and the Anglo-Scottish Union, 1699–1707* (Woodbridge: Boydell Press, 2007).
13. Colin Kidd, *Union and Unionisms: Political Thought in Scotland 1500–2000* (Cambridge: Cambridge University Press, 2008), 108–115.
14. Stephen Tierney, ‘Scotland in the Union’, in *The Cambridge Constitutional History of the United Kingdom: Volume II: The Changing Constitution*, ed. Peter Cane and H. Kumarasingham (Cambridge: Cambridge University Press, 2023), 427.

15. Paragraph 43 of Annex A, 'Opinion: Referendum on the Independence of Scotland – International Law Aspects', in *Scotland analysis: Devolution and the implications of Scottish independence*, presented to Westminster by the then Secretary of State for Scotland, the Rt Hon Michael Moore MP, in February 2013. Quoted in Ian Campbell, "'The Union and the law" revisited', *Journal of the Law Society of Scotland*, 59, no. 7 (2014): <https://www.lawscot.org.uk/members/journal/issues/vol-59-issue-07/the-union-and-the-law-revisited/>.
16. Ruth Ross, 'Te Tiriti o Waitangi: Texts and Translations', *The New Zealand Journal of History* 6, no. 2 (1972): 129–57.
17. Bain Attwood, 'A Bloody Difficult Subject': *Ruth Ross, te Tiriti o Waitangi and the Making of History* (Auckland: Auckland University Press, 2023).
18. The Hon. Justice Sir Joe Williams, 'Foreword', in Fletcher, *English Text*, VII.
19. On the political context to the drafting of this provision see Mark Hickford, 'Quasi-constitutionality and the Treaty of Waitangi: Historicity and the politics', in *Quasi-Constitutionality and Constitutional Statutes: Forms, Functions, Applications* eds. Richard Albert and Joel I. Colón-Ríos (Abingdon: Routledge, 2019), 94–116.
20. Sir Geoffrey Palmer, 'The Treaty of Waitangi – where to from here?', *Otago Law Review* 11, no. 3 (2007): 381–8, at 383.
21. *New Zealand Maori Council v Attorney-General* [1987] 1 NZLR 641 (CA).
22. J.G.A. Pocock, 'The Treaty between histories', in *Histories, Power and Loss: Uses of the Past – A New Zealand Commentary*, eds. Andrew Sharp and Paul McHugh (Wellington: Bridget Williams Books, 2001), 83.
23. J.G.A. Pocock, 'Waitangi as Mystery of State: Consequences of the Ascription of Federative Capacity to the Māori', in *Political Theory and the Rights of Indigenous Peoples*, eds. Duncan Ivison, Paul Patton and Will Sanders (Cambridge: Cambridge University Press, 2000), 25–35, at 34.
24. Janet McLean, 'The Political, the Historical and the Universal in New Zealand's Unwritten Constitution', *New Zealand Journal of Public and International Law* 12, no.2 (2014): 321–44.
25. 'Interview with Sir Geoffrey Palmer': <https://natlib.govt.nz/he-tohu/korero/interview-with-sir-geoffrey-palmer>.
26. Geoffrey W.R. Palmer and Andrew Butler, *A Constitution for Aotearoa New Zealand* (Wellington: Victoria University Press, 2016); Geoffrey W.R. Palmer and Andrew Butler, *Towards Democratic Renewal: Ideas for Constitutional Change in New Zealand* (Wellington: Victoria University Press, 2018).
27. F.M. Brookfield, 'The Treaty of Waitangi, the Constitution and the Future', *British Review of New Zealand Studies* 8 (1995): 4–20.
28. *MacCormick v Lord Advocate* 1953 SC 396.
29. Kidd, *Unionisms*, 116–33.
30. Colin Kidd, 'The Union and the Constitution': <https://www.historyandpolicy.org/policy-papers/papers/the-union-and-the-constitution>.
31. Max Harris, *The New Zealand Project* (Wellington: Bridget Williams Books, 2017), 96.
32. Ani Mikaere, *Colonising Myths – Māori Realities: He Rukuruku Whakaaro* (Wellington: Huia, 2020 edn), 142.
33. Morgan Godfrey, 'The political constitution: from Westminster to Waitangi', *Political Science* 68, no.2 (2016): 192–209.
34. W.H. Oliver, 'The future behind us: The Waitangi Tribunal's retrospective utopia', in *Histories*, eds. Sharp and McHugh, 1–26; Andrew Sharp, 'History and sovereignty: a case of juridical history in New Zealand/Aotearoa', in *Cultural Politics and the University in Aotearoa/New Zealand*, ed. Michael Peters (Palmerston North: Dunmore Press, 1997); Attwood, 'A Bloody Difficult Subject'. See also P. G. McHugh, 'The Common-Law Status of Colonies and Aboriginal Rights: How Lawyers and Historians Treat the Past', *Saskatchewan Law Review* 61, no.2 (1998): 393–430.
35. Miranda Johnson, 'Decolonising Universities? Myth-Histories of the Nation and Challenges to Academic Freedom in Aotearoa New Zealand', *Transactions of the Royal Historical Society* 17, no.1 (2023): 329–47.
36. For a concise overview of the scholarship on this issue, see Andrew McIndoe, 'A Pluralistic Imperialism? Britain's Understanding of Sovereignty at the Signing of the Treaty of Waitangi', *Auckland Law Review* 21 (2015): 60–85. See also P.G. McHugh, 'The Historiography of New Zealand's Constitutional History', in *Essays on the Constitution*, ed. Philip A. Joseph (Brooker's: Wellington, 1995), 344–67, at 365–367.
37. Carwyn Jones, *New Treaty, New Tradition: Reconciling New Zealand and Māori Law* (Vancouver, UBC Press, 2016), 10.
38. Colin Kidd, 'Sovereignty and the Scottish Constitution before 1707', *Juridical Review* 3 (2004): 225–36; William Ferguson, 'Imperial crowns: a neglected facet of the background to the Treaty of Union of 1707', *Scottish Historical Review* 53, no. 1 (1974), 22–44; John Robertson, 'The Idea of Sovereignty and the Act of Union', in *The Challenge to Westminster: Sovereignty, Devolution and Independence*, eds. Michael Lynch and H.T. Dickinson (East Linton: Tuckwell Press, 2000), 33–41; John Robertson, 'An Elusive Sovereignty: The Course of the Union Debate in Scotland 1698–1707', in *A Union for Empire: Political Thought and the Union of 1707*, ed. John Robertson (Cambridge: Cambridge University Press, 1995), 198–227. See also Roger Mason, 'Beyond the Declaration of Arbroath: kingship, counsel and consent in late medieval and early modern Scotland', in

- Kings, Lords and Men in Scotland and Britain, 1325–1625*, eds. Steve Boardman and Julian Goodare (Edinburgh: Edinburgh University Press, 2014), 265–82.
39. Karin Bowie, “A Legal Limited Monarchy”: Scottish Constitutionalism in the Union of the Crowns, 1603–1707”, *Journal of Scottish Historical Studies* 35, no.2 (2015): 131–154.
 40. Kidd, *Unionisms*, 101–108.
 41. Pocock, *Discovery of Islands*, 168.
 42. Waitangi Tribunal, *He Whakaputanga me te Tiriti: the Declaration and the Treaty*, Wai 1040 (Wellington, 2014), quoted in David V Williams, ‘He Whakaputanga me te Tiriti: The Declaration and the Treaty – Sovereignty in February 1840 – Comment’, *Māori Law Review* (2014): <http://maorilawreview.co.nz/2014/11/he-whakaputanga-me-te-tiriti-the-declaration-and-the-treaty-sovereignty-in-february-1840-comment/>.
 43. Paul McHugh, *Aboriginal Societies and the Common Law: A History of Sovereignty, Status, and Self-Determination* (Oxford: Oxford University Press, 2004).
 44. These actions could be seen as conveying an intention to give effect to te tino rangatiratanga as expressed in te Tiriti/the Treaty, though it should be pointed out that Charles Buller, who drafted one of the constitutional designs recognising Māori districts believed that the Treaty was applicable only in the far north: Mark Hickford, ‘Designing Constitutions in Britain’s Mid-Nineteenth Century Empire – Indigenous Territorial Government in New Zealand and Retrieving Constitutional Histories’, *The Journal of Imperial and Commonwealth History*, 46, no.4 (2018): 676–706.
 45. Hickford, *Lords of the Land*, 110.
 46. J.G.A. Pocock, ‘Tangata Whenua and Enlightenment Anthropology’, *The New Zealand Journal of History* 26, no.1 (1992): 28–53.
 47. Mark Hickford, ‘Interpreting the Treaty – Questions of native title, territorial government and searching for constitutional histories’, in *After the Treaty: The settler state, race relations and the exercise of power in colonial New Zealand*, eds. Brad Patterson, Richard S Hill and Kathryn Patterson (Wellington: Steele Roberts, 2016), 92–131 at 104–110; Mark Hickford, “Decidedly the Most Interesting Savages on the Globe”: An Approach to the Intellectual History of Māori Property Rights, 1837–1853’, *History of Political Thought* 27, no.1 (2006): 121–67, at 142, 152.
 48. See James Busby, *Remarks upon a Pamphlet Entitled “The Taranaki Question, by Sir William Martin, D.C.L., Late Chief Justice of New Zealand”*, quoted in Fletcher, *English Text*, 693, n. 67.
 49. Busby to Alexander Busby, 10th Dec 1835, Busby Papers, MS46 Folder 1, Auckland War Memorial Museum Library [AML].
 50. ‘James Busby, of Victoria, in New Zealand’, June 18, 1845, *Appendix to the Thirty-Fifth Report of the Select Committee on Public Petitions*, 393: https://parlipapers-proquest-com.nls.idm.oclc.org/parlipapers/docview/t110.d110.pet_0236_001033_0001?accountid=12801.
 51. Fletcher, *English Text*, 497–507.
 52. Ned Fletcher and Dame Sian Elias, ‘A Collusive Suit to “Confound the Rights of Property Through the Length and Breadth of the Colony”? : *Busby v White* (1859)’, *Victoria University of Wellington Law Review* 41 (2010): 563–604.
 53. Ged Martin, ‘James Busby and the Treaty of Waitangi’, *British Review of New Zealand Studies* 5 (1992): 5–22, at 21.
 54. The most recent biography of Busby is Paul Moon, *The Rise and Fall of James Busby* (London: Bloomsbury, 2020).
 55. He considered sending his son Willie to the new school run by Rev. John Dunmore Lang, Scottish Presbyterian minister in Sydney, but instead sent him to Hobart Town Academy run by an Edinburgh man who had been ‘spoken of in the highest terms by Mr and Mrs Wemyss’. William Wemyss was a Scot who ran the commissariat in Sydney and with whom Lang had a difficult relationship. See James Busby to George Busby, 10th Feb 1827, GD1/1115/2/3, National Records of Scotland [NRS] and James Busby to George Busby, 29th June 1827, GD1/1115/2/5, NRS. When Busby and Wemyss visited London at the same time, Busby reported that they ‘were constantly together’: Busby to Alexander Busby, 10th Aug 1831, Busby Papers, MS46 Folder 1, AML. For Busby’s continuing Scottish connections, see his correspondence with Edinburgh friends in Busby Papers, MS46 Folder 5, AML.
 56. Hickford, *Lords of the Land*, 40.
 57. James Busby to George Busby, no date, GD1/1115/2/6 and James Busby to George Busby, 27th July 1829, GD1/1115/4/10, NRS; James Busby to George Busby, 29 June 1827, Busby Papers, MS46, Folder 2, AML.
 58. Later in life in May 1868 he mentioned conversing at length with Colonel [Roger Stewart] Beatson who ‘talked so long about Greenock people that we were too late for Church.’ Diary entry for May, Copy of the Diary For the Year 1868 of James Busby British Resident in New Zealand, Busby Papers, MS 46 Box 6 v.3, AML.
 59. Fletcher and Elias, ‘*Busby v White*’, 577–8.
 60. For more on Busby’s land claims and the intricacies of his legal battles, see Fletcher and Elias, ‘*Busby v White*’.
 61. Isabella Mary Shepherd, daughter of Alexander Shepherd (1798–1859), who was born in Aberdeen and was second Colonial Treasurer of New Zealand.

62. Singleton Rochfort, *The Constitutional Law of England in its Relation to Colonial Settlements* (Auckland: Philip Kunst, 1860). In handwritten marginalia on the copy held by the Alexander Turnbull Library in Wellington, Rochfort named Busby as the editor and noted that Busby made editorial interventions.
63. 'White v Busby', *Daily Southern Cross*, 30 September 1859, 2. See also <https://www.wgtn.ac.nz/law/nzlostcases/CaseDetails.aspx?casenumber=00270>.
64. *Daily Southern Cross*, 14 October 1859, 1 (Supplement). This contrasts with the language used in the Treaty itself. In the preamble to the English-language document, likely written by Hobson, the Queen is described as the 'Queen of Great Britain and Ireland'. But in the articles that follow, the Queen is inaccurately referred to as the 'Queen of England'. In Busby's second draft, Busby kept 'Queen of England' in what would become article one; in article three, which he adopted from Freeman almost exactly, he altered the reference to 'the Queen' to 'Her Majesty the Queen of England'. In the Māori text 'Ingarani' is used: a word that refers to both Britain and England. Busby's language is curious as he understood only too well the importance of the distinction between Britain and England. Nevertheless, it was not uncommon for nineteenth-century Scots, including émigré Scots like Busby, to use Britain and England interchangeably.
65. 'White v Busby', *Daily Southern Cross*, 30 September 1859, 2.
66. 'White v Busby', *Daily Southern Cross*, 30 September 1859, 2.
67. *Daily Southern Cross*, 14 October 1859, 1 (Supplement).
68. *Daily Southern Cross*, 14 October 1859, 1 (Supplement).
69. Like James Stephen, Busby and Rochfort rejected the applicability to New Zealand of *Johnson v M'Intosh* (1823). In 1844 Busby had consulted with Justice Joseph Story of the US Supreme Court who had participated in *Johnson v M'Intosh*. Story reportedly stated to Busby that the American case had no application in New Zealand on account of the Treaty of Waitangi and the Crown's recognition of Māori sovereignty: Fletcher, *English Text*, 462–3.
70. *Daily Southern Cross*, 1 November 1859, 2.
71. *Daily Southern Cross*, 14 October 1859, 1 (Supplement).
72. *Daily Southern Cross*, 1 November 1859, 2.
73. Kidd, *Unionisms*, 97.
74. *Daily Southern Cross*, 1 November 1859, 2.
75. *Daily Southern Cross*, 6 January 1860, 2.
76. *Daily Southern Cross*, 3 February 1860, 2.
77. *Daily Southern Cross*, 10 February 1860, 2.
78. *Daily Southern Cross*, 1 November 1859, 2.
79. *Daily Southern Cross*, 20 December 1859, 2.
80. Samuel McDonald Martin, *New Zealand; in a Series of Letters* (London: Simmonds and Ward, 1845), 346–8.
81. 'New Zealand Colonization Necessarily Different from that of any other British colony', *Southern Cross*, 17 June 1843.
82. Busby to Alexander Busby, 16 Nov 1838, Busby Papers, MS46 Folder 1, AML. *The Colonist* was first edited by John Dunmore Lang and then James McEachern. For Martin and *The Colonist*, see Valerie Wallace, *Scottish Presbyterianism and Settler Colonial Politics: Empire of Dissent* (Cham: Palgrave Macmillan, 2018), chapters 10 and 11.
83. 'Settlers in the Province of Auckland, in the colony of New Zealand', June 12, 1865, *Appendix to the Twenty-Ninth Report of the Select Committee on Public Petitions*, 254: https://parlipapers-proquest-com.nls.idm.oclc.org/parlipapers/docview/t110.d110.pet_0407_001108_0002?accountid=12801.
84. Fletcher, *English Text*, 484, 505; Hickford, *Lords of the Land*, 425–28. Despite his dispute with Martin, in a petition to the House of Commons in June 1865, Busby continued to maintain that 'all rights of property existing at the date of the Treaty of Waitangi were guaranteed by that treaty.' He also insisted that the land claims legislation had been 'beyond the competence of the local legislature.' See 'James Busby, of Waitangi, in the province of Auckland and colony of New Zealand, esquire', June 12, 1865, *Appendix to the Twenty-Ninth Report of the Select Committee on Public Petitions*, 253: https://parlipapers-proquest-com.nls.idm.oclc.org/parlipapers/docview/t110.d110.pet_0407_001108_0001?accountid=12801.
85. William Martin, 'Observations on the Proposal to take Native Lands under an Act of the Assembly', in *Appendix to the Journals of the House of Representatives of New Zealand* (Auckland, 1864), E-2, 7.
86. Fletcher, *English Text*, 464.
87. Hickford, *Lords of the Land*, 286–99.
88. Alex Frame, 'Kauwaeranga Judgment', *Victoria University of Wellington Law Review* 18 (1984): 227–46.
89. 'Native Affairs Committee (Report on the Native Land Disposition Bill, Together with Minutes of Evidence and Appendix.)', *Appendix to the Journals of the House of Representatives*, 9 Sep 1885, 38–9.
90. *New Zealand Parliamentary Debates* (Wellington: Government Printer, 1882), vol. 43, 3 Aug 1882, 136, col. 1. For a similar view see *Wanganui Herald*, 15 Nov 1880: <https://paperspast.natlib.govt.nz/newspapers/WH18801115.2.5>

91. For a nuanced assessment of the Crown's approach to the Treaty in the early twentieth century, see Mark Hickford, 'John Salmond and Native Title in New Zealand: Developing a Crown Theory on the Treaty of Waitangi, 1910–1920', *Victoria University of Wellington Law Review* 38, no.4 (2008): 853–924.
92. Richard Finlay, 'National Identity, Union, and Empire, c.1850–c.1970', in *Scotland and the British Empire*, eds. John M. MacKenzie and T.M. Devine (Oxford: Oxford University Press, 2011), 280–316, at footnote 40.
93. Pocock, *Discovery of Islands*, 20.
94. Ian McBride, 'J.G.A. Pocock and the Politics of British History', in *Four-Nations Approaches to Modern 'British' History: A [Dis]united Kingdom?*, eds. Naomi Lloyd-Jones and Margaret M. Scull (London: Palgrave Macmillan, 2018), 33–58.
95. Brad Patterson et al, *Unpacking the Kists: The Scots in New Zealand* (Montreal and Kingston: McGill-Queen's University Press, 2013), 4–6.
96. Pocock, *Discovery of Islands*, 22.
97. Dame Sian Elias, 'Fundamentals: A Constitutional Conversation', *Waikato Law Review* 19, no. 1 (2011): 1–16.
98. Pocock, *Discovery of Islands*, 14.

Acknowledgements

I gratefully acknowledge the Royal Society of New Zealand Te Apārangi Marsden Fund for its support of the research on which this paper is based. My sincere thanks to Catherine Abou-Nemeh, Jamie Eng, Ned Fletcher, Max Harris, Mark Hickford, Miranda Johnson, and Colin Kidd for commenting on a draft of the paper; to John Robertson and the other participants at the Pocock centenary colloquium at St Andrews in March 2023 for their insights; and to Tommy Boyd for his invaluable research assistance in Wellington.

Disclosure statement

No potential conflict of interest was reported by the author(s).

Bibliography

- Attwood, Bain, 'A Bloody Difficult Subject': *Ruth Ross, te Tiriti o Waitangi and the Making of History* (Auckland: Auckland University Press, 2023).
- Boast, Richard, and Richard S. Hill (eds), *Raupatu: The Confiscation of Maori Land* (Wellington: Victoria University Press, 2009).
- Bowie, Karin, "'A Legal Limited Monarchy": Scottish Constitutionalism in the Union of the Crowns, 1603–1707', *Journal of Scottish Historical Studies* 35, no.2 (2015): 131–154.
- Bowie, Karin, *Scottish Public Opinion and the Anglo-Scottish Union, 1699–1701* (Woodbridge: Boydell Press, 2007).
- Brookfield, F.M. 'The Treaty of Waitangi, the Constitution and the Future', *British Review of New Zealand Studies* 8 (1995): 4–20.
- Campbell, Ian, "'The Union and the law" revisited', *Journal of the Law Society of Scotland*, 59, no. 7 (2014) <https://www.lawscot.org.uk/members/journal/issues/vol-59-issue-07/the-union-and-the-law-revisited/>.
- 'Circumstances Alter Cases,' *Wanganui Herald*, 15 Nov 1880: <https://paperspast.natlib.govt.nz/newspapers/WH1880115.2.5>
- Daily Southern Cross*, 14 October 1859, 1 (Supplement).
- Daily Southern Cross*, 1 November 1859.
- Daily Southern Cross*, 20 December 1859.
- Daily Southern Cross*, 6 January 1860.
- Daily Southern Cross*, 3 February 1860.
- Daily Southern Cross*, 10 February 1860.
- Donaldson, Gordon (ed.), *Scottish Historical Documents* (Neil Wilson: Glasgow, 1997).
- Elias, Dame Sian, 'Fundamentals: A Constitutional Conversation', *Waikato Law Review* 19, no.1 (2011): 1–16.
- Ferguson, William, 'Imperial crowns: a neglected facet of the background to the Treaty of Union of 1707', *Scottish Historical Review* 53, no. 1 (1974): 22–44.
- Finlay, Richard, 'National Identity, Union, and Empire, c.1850–c.1970,' in John M. Mackenzie and T.M. Devine eds., *Scotland and the British Empire* (Oxford: Oxford University Press, 2011): 280–316.
- Fletcher, Ned, *The English Text of the Treaty of Waitangi* (Wellington: Bridget Williams Books, 2022).
- Fletcher, Ned and Dame Sian Elias, 'A Collusive Suit to "Confound the Rights of Property Through the Length and Breadth of the Colony"?: *Busby v White* (1859)'. *Victoria University of Wellington Law Review* 41 (2010): 563–604.
- Frame, Alex, 'Kauwaeranga Judgment', *Victoria University of Wellington Law Review* 18 (1984): 227–46.

- Godfrey, Morgan, 'The political constitution: from Westminster to Waitangi,' *Political Science* 68, no.2 (2016): 192–209.
- Harris, Max, *The New Zealand Project* (Wellington: Bridget Williams Books, 2017).
- Hickford, Mark, "Decidedly the Most Interesting Savages on the Globe": An Approach to the Intellectual History of Māori Property Rights, 1837–1853', *History of Political Thought* 27, no.1 (2006): 121–167.
- Hickford, Mark, 'Designing Constitutions in Britain's Mid-Nineteenth Century Empire – Indigenous Territorial Government in New Zealand and Retrieving Constitutional Histories', *Journal of Imperial and Commonwealth History* 46, no.4 (2018): 676–706.
- Hickford, Mark. 'Interpreting the Treaty – Questions of native title, territorial government and searching for constitutional histories', in Brad Patterson, Richard S Hill and Kathryn Patterson (eds.), *After the Treaty: The settler state, race relations and the exercise of power in colonial New Zealand* (Wellington: Steele Roberts, 2016): 92–131.
- Hickford, Mark, 'John Salmond and Native Title in New Zealand: Developing a Crown Theory on the Treaty of Waitangi, 1910–1920', *Victoria University of Wellington Law Review* 38, no.4 (2008): 853–924.
- Hickford, Mark, *Lords of the Land: Indigenous Property Rights and the Jurisprudence of Empire* (Oxford: Oxford University Press, 2011).
- Hickford, Mark, 'Quasi-constitutionality and the Treaty of Waitangi: Historicity and the politics', in Richard Albert and Joel I. Colón-Ríos (eds.), *Quasi-Constitutionality and Constitutional Statutes: Forms, Functions, Applications* (Abingdon: Routledge, 2019): 94–116.
- 'James Busby, of Victoria, in New Zealand', June 18, 1845, Appendix to the Thirty-Fifth Report of the Select Committee on Public Petitions, 393: https://parlipapers-proquest-com.nls.idm.oclc.org/parlipapers/docview/t110.d110.pet_0236_001033_0001?accountid=12801.
- 'James Busby, of Waitangi, in the province of Auckland and colony of New Zealand, esquire', June 12, 1865, Appendix to the Twenty-Ninth Report of the Select Committee on Public Petitions, 253: https://parlipapers-proquest-com.nls.idm.oclc.org/parlipapers/docview/t110.d110.pet_0407_001108_0001?accountid=12801.
- James Busby Papers, GD1/1115, National Records of Scotland.
- James Busby Papers, MS46, Auckland War Memorial Museum Library.
- Johnson, Miranda, 'Decolonising Universities? Myth-Histories of the Nation and Challenges to Academic Freedom in Aotearoa New Zealand', *Transactions of the Royal Historical Society* 17, no.1 (2023): 329–47.
- Jones, Carwyn, *New Treaty, New Tradition: Reconciling New Zealand and Māori Law* (Vancouver, UBC Press, 2016).
- Kidd, Colin, 'Sovereignty and the Scottish Constitution before 1707', *Juridical Review* 3 (2004): 225–236.
- Kidd, Colin, 'The Union and the Constitution': <https://www.historyandpolicy.org/policy-papers/papers/the-union-and-the-constitution>.
- Kidd, Colin, *Union and Unionisms: Political Thought in Scotland 1500–2000* (Cambridge: Cambridge University Press, 2008).
- McBride, Ian, 'J.G.A. Pocock and the Politics of British History', in Naomi Lloyd-Jones and Margaret M. Scull (eds.), *Four-Nations Approaches to Modern 'British' History: A [Dis]united Kingdom?* (London: Palgrave Macmillan, 2018): 33–58.
- MacCormick v Lord Advocate* 1953 SC 396.
- McHugh, P.G., *Aboriginal Societies and the Common Law: A History of Sovereignty, Status, and Self-Determination* (Oxford: Oxford University Press, 2004).
- McHugh, P.G., 'The Common-Law Status of Colonies and Aboriginal Rights: How Lawyers and Historians Treat the Past', *Saskatchewan Law Review* 61, no.2 (1998): 393–430.
- McHugh, P.G., 'The Historiography of New Zealand's Constitutional History', in Philip A. Joseph (ed.), *Essays on the Constitution* (Wellington: Brooker's, 1995): 344–367.
- McIndoe, Andrew, 'A Pluralistic Imperialism? Britain's Understanding of Sovereignty at the Signing of the Treaty of Waitangi', *Auckland Law Review* 21 (2015): 60–85.
- McLean, Janet, 'The Political, the Historical and the Universal in New Zealand's Unwritten Constitution', *New Zealand Journal of Public and International Law* 12, no.2 (2014): 321–44.
- Martin, Ged, 'James Busby and the Treaty of Waitangi', *British Review of New Zealand Studies* 5 (1992): 5–22.
- Martin, Samuel McDonald, *New Zealand; in a Series of Letters* (London: Simmonds and Ward, 1845).
- Martin, William, 'Observations on the Proposal to take Native Lands under an Act of the Assembly', in *Appendix to the Journals of the House of Representatives of New Zealand* (Auckland, 1864).
- Mason, Roger, 'Beyond the Declaration of Arbroath: kingship, counsel and consent in late medieval and early modern Scotland', in Steve Boardman and Julian Goodare (eds.), *Kings, Lords and Men in Scotland and Britain, 1325–1625* (Edinburgh: Edinburgh University Press, 2014): 265–282.
- Mikaere, Ani, *Colonising Myths – Māori Realities: He Rukuruku Whakaaro* (Wellington: Huia, 2020).
- Moon, Paul, *The Rise and Fall of James Busby* (London: Bloomsbury, 2020).
- 'Native Affairs Committee (Report on the Native Land Disposition Bill, Together with Minutes of Evidence and Appendix.)'. Appendix to the Journals of the House of Representatives, 9 Sep. 1885.
- 'New Zealand Colonization Necessarily Different from that of any other British colony'. *Southern Cross*, 17 June 1843.

- New Zealand Maori Council v Attorney-General* [1987] 1 NZLR 641 (CA).
- New Zealand Parliamentary Debates*. Wellington: Government Printer, 1882, vol. 43.
- Oliver, W.H., 'The future behind us: The Waitangi Tribunal's retrospective utopia,' in Andrew Sharp and Paul McHugh (eds.), *Histories, Power and Loss: Uses of the Past – A New Zealand Commentary* (Wellington: Bridget Williams Books, 2001): 1–26.
- Palmer, Geoffrey W.R., 'Interview with Sir Geoffrey Palmer': <https://natlib.govt.nz/he-tohu/korero/interview-with-sir-geoffrey-palmer>.
- Palmer, Geoffrey W.R., 'The Treaty of Waitangi – where to from here?', *Otago Law Review* 11, no. 3 (2007): 381–388.
- Palmer, Geoffrey W.R. and Andrew Butler, *A Constitution for Aotearoa New Zealand* (Wellington: Victoria University Press, 2016).
- Palmer, Geoffrey W.R. and Andrew Butler, *Towards Democratic Renewal: Ideas for Constitutional Change in New Zealand* (Wellington: Victoria University Press, 2018).
- Palmer, Matthew, 'The Treaty in New Zealand's Law and Constitution': <https://natlib.govt.nz/blog/posts/the-treaty-in-new-zealand-s-law-and-constitution>.
- Parkinson, Phil, '“Preserved in the Archives of the Colony”: The English Drafts of the Treaty of Waitangi', *Révue Juridique Polynésienne/New Zealand Association for Comparative Law* 11 (2004): 1–110.
- Patterson, Brad et al., *Unpacking the Kists: The Scots in New Zealand* (Montreal and Kingston: McGill-Queen's University Press, 2013).
- Pocock, J.G.A., 'Tangata Whenua and Enlightenment Anthropology', *New Zealand Journal of History* 26, no.1 (1992): 28–53.
- Pocock, J.G.A., *The Discovery of Islands* (Cambridge: Cambridge University Press, 2005).
- Pocock, J.G.A., 'The Treaty between histories', in Andrew Sharp and Paul McHugh (eds.), *Histories, Power and Loss: Uses of the Past – A New Zealand Commentary* (Wellington: Bridget Williams Books, 2001): 82–107.
- Pocock, J.G.A., 'The Uniqueness of Aotearoa' *Proceedings of the American Philosophical Society* 145, no. 4 (2001): 482–87.
- Pocock, J.G.A., 'Waitangi as Mystery of State: Consequences of the Ascription of Federative Capacity to the Māori', in Duncan Ivison, Paul Patton and Will Sanders (eds.), *Political Theory and the Rights of Indigenous Peoples* (Cambridge: Cambridge University Press, 2000): 25–35.
- Robertson, John, 'An Elusive Sovereignty: The Course of the Union Debate in Scotland 1698–1707' in John Robertson (ed.), *A Union for Empire: Political Thought and the Union of 1707*, (Cambridge: Cambridge University Press, 1995): 198–227.
- Robertson, John, 'The Idea of Sovereignty and the Act of Union', in Michael Lynch and H.T. Dickinson (eds.), *The Challenge to Westminster: Sovereignty, Devolution and Independence* (East Linton: Tuckwell Press, 2000): 33–41.
- Rochfort, Singleton, *The Constitutional Law of England in its Relation to Colonial Settlements* (Auckland: Philip Kunst, 1860).
- Ross, Ruth, 'Te Tiriti o Waitangi: Texts and Translations', *New Zealand Journal of History* 6, no. 2 (1972): 129–57.
- 'Settlers in the Province of Auckland, in the colony of New Zealand', June 12, 1865, Appendix to the Twenty-Ninth Report of the Select Committee on Public Petitions, 254: https://parlipapers-proquest-com.nls.idm.oclc.org/parlipapers/docview/t110.d110.pet_0407_001108_0002?accountid=12801.
- Sharp, Andrew, 'History and sovereignty: a case of juridical history in New Zealand/Aotearoa' in Michael Peters (ed.), *Cultural Politics and the University in Aotearoa/New Zealand* (Palmerston North: Dunmore Press, 1997): 159–181.
- 'The full text of Te Tiriti o Waitangi | The Treaty of Waitangi': <https://www.tepapa.govt.nz/discover-collections/read-watch-play/maori/treaty-waitangi/treaty-close/full-text-te-tiriti-o>.
- Tierney, Stephen, 'Scotland in the Union', in Peter Cane and H. Kumarasingham (eds.), *Cambridge Constitutional History of the United Kingdom: Volume II: The Changing Constitution* (Cambridge: Cambridge University Press, 2023): 422–42.
- Wallace, Valerie, *Scottish Presbyterianism and Settler Colonial Politics: Empire of Dissent* (Cham: Palgrave Macmillan, 2018).
- Whately, Christopher A., and Derek J. Patrick, *The Scots and the Union* (Edinburgh: Edinburgh University Press, 2006).
- 'White v Busby', *Daily Southern Cross*, 30 September 1859.
- 'White v Busby': <https://www.wgtn.ac.nz/law/nzlostcases/CaseDetails.aspx?casenumber=00270>
- Wi Parata v Bishop of Wellington* (1877) 3 NZ Jur (NS) 72 (SC).
- Williams, David V., *A Simple Nullity?: The Wi Parata Case in New Zealand Law and History* (Auckland: Auckland University Press, 2011).
- Williams, David V., 'Constitutional Traditions in Māori Interactions with the Crown', *New Zealand Journal of Public and International Law* 12, no.1 (2014): 231–60.
- Williams, David V., 'He Whakaputanga me te Tiriti: The Declaration and the Treaty – Sovereignty in February 1840 – Comment', *Māori Law Review* (2014): <http://maorilawreview.co.nz/2014/11/he-whakaputanga-me-te-tiriti-the-declaration-and-the-treaty-sovereignty-in-february-1840-comment/>.